

# TAB 3



## Board of Education Report

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**File #:** Rep-025-22/23, **Version:** 1

### **Define and Approve Three Projects to Provide Critical Replacements and Upgrades of School Building/Site Systems and Components and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein**

**September 27, 2022**

**Facilities Services Division**

#### **Action Proposed:**

Define and approve three projects to provide critical replacements and upgrades of school building/site systems and components, as listed on Attachment A, and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein. The total combined budget for the three projects is \$24,021,663.

Authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the proposed projects, including budget modifications and the purchase of equipment and materials.

#### **Background:**

Priorities for the expenditure of capital funding are evaluated to ensure the District's most pressing priorities are being addressed. More than 70 percent of Los Angeles Unified School District (Los Angeles Unified or District) school buildings were built more than 50 years ago, and more than \$50 billion of unfunded school facilities needs have been identified Districtwide, and these needs grow every year. As the District's capital needs far exceed available funding, the most pressing unfunded critical needs will continue to be addressed based on an evaluation of known facilities conditions and needs at schools. Projects developed under this category of need, *Critical Replacements and Upgrades of School Building/Site Systems and Components*, will replace failing building systems that create safety concerns and are disruptive to school operations. Systems in the worst condition, especially those that pose a safety hazard and/or will negatively impact school operations and other building systems if not addressed, will be addressed first.

The project proposals contained in this Board Report align with these priorities. Attachment A includes three projects to replace failing building systems that create safety concerns and are disruptive to school operations.

#### **Expected Outcomes:**

Staff anticipates that the Board of Education will define and approve three projects that address critical replacement and upgrade needs and amend the Facilities SEP to incorporate therein. Approval will authorize staff to proceed with the implementation of the proposed projects to improve student health, safety and educational quality.

#### **Board Options and Consequences:**

Adoption of the proposed action will authorize staff to proceed with the expenditure of Bond Program funds to undertake the project proposals in accordance with the provisions set forth in Los Angeles Unified local bond measures K, R, Y, Q, and RR. If the proposed action is not approved, Bond Program funds will not be expended, and critical replacement and upgrade needs will remain unaddressed.

**Policy Implications:**

The proposal is consistent with the Los Angeles Unified's long-term goal to address unmet school facilities needs and significantly improve the conditions of aging and deteriorating school facilities as described in Los Angeles Unified local bond measures.

**Budget Impact:**

The total combined budget for the three projects is \$24,021,663. The projects will be funded with Bond Program funds earmarked specifically for critical replacements and upgrades of school building/site systems and components.

Each project budget was prepared based on the current information known and assumptions about the project scope, site conditions, and market conditions. Individual project budgets will be reviewed throughout the planning, design, and construction phases as new information becomes known or unforeseen conditions arise and will be adjusted accordingly to enable the successful completion of each project.

**Student Impact:**

Approval of the proposed projects enables the District to continue our ongoing efforts to undertake facilities improvements that help ensure students are provided with safe school environments that promote teaching and learning.

**Equity Impact:**

See attached.

**Issues and Analysis:**

It may be necessary to undertake feasibility studies, site analysis, scoping, and/or due diligence activities on the proposed projects prior to initiating design. As necessary, the Office of Environmental Health and Safety (OEHS) will evaluate the proposed projects in accordance with the California Environmental Quality Act (CEQA) to ensure compliance. If through the planning and design process it is determined that the proposed project scope(s) will not sufficiently address the critical needs identified, the project scope, schedule and budget will be revised accordingly.

**Bond Oversight Committee Recommendations:**

This item was considered by the School Construction Bond Citizen's Oversight Committee (BOC) at its meeting on September 1, 2022. Staff has concluded that this proposed Facilities SEP amendment is in alignment with BOC recommendations and will facilitate Los Angeles Unified's ability to successfully implement the Facilities SEP.

**Attachments:**

Attachment A - Projects to Replace Failing Building Systems that Create Safety Concerns and are Disruptive to School Operations

Attachment B - BOC Resolution

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**Informatives:**

None.

**Submitted:**

08/31/22

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RESPECTFULLY SUBMITTED,



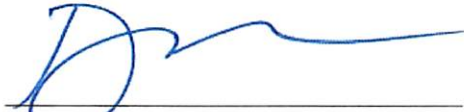
ALBERTO M. CARVALHO  
Superintendent

APPROVED BY:



MEGAN K. REILLY  
Deputy Superintendent

REVIEWED BY:



DEVORA NAVERA REED  
General Counsel



Approved as to form.

APPROVED BY:



MARK HOVATTER  
Chief Facilities Executive  
Facilities Services Division

REVIEWED BY:



TONY ATIENZA  
Director, Budget Services and Financial Planning



Approved as to budget impact statement.

PRESENTED BY:



INDIA R. GRIFFIN  
Director of Maintenance and Operations  
Facilities Services Division

**INTEROFFICE CORRESPONDENCE**  
**Los Angeles Unified School District**  
**FACILITIES SERVICES DIVISION**  
***Equity Impact Statement\*\****

**TO:** Members, Board of Education  
 Alberto M. Carvalho, Superintendent

**DATE:** August 23, 2022

**FROM:** Mark Hovatter, Chief Facilities Executive

**SUBJECT: BR-025-22/23 DEFINE AND APPROVE THREE PROJECTS TO PROVIDE CRITICAL REPLACEMENTS AND UPGRADES OF SCHOOL BUILDING/SITE SYSTEMS AND COMPONENTS AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

|                            |                  |
|----------------------------|------------------|
| <b>Board Meeting Date:</b> | <b>9/27/2022</b> |
|----------------------------|------------------|

| <b>Equity Impact</b>           |                                                                               |                                                                       |                                                                             |                                                                                       |
|--------------------------------|-------------------------------------------------------------------------------|-----------------------------------------------------------------------|-----------------------------------------------------------------------------|---------------------------------------------------------------------------------------|
| <b>Component</b>               | <b>1</b>                                                                      | <b>2</b>                                                              | <b>3</b>                                                                    | <b>4</b>                                                                              |
| <b>Recognition</b>             | Does not recognize historical inequities                                      | Vaguely recognizes historical inequities                              | Affirmatively recognizes historical inequities                              | Actively recognizes and specifies historical inequities to correct                    |
| <b>Resource Prioritization</b> | Does not prioritize resources based on student need                           | Somewhat prioritizes resources based on student need                  | Prioritizes resources based on student need                                 | Effectively prioritizes resources based on student need                               |
| <b>Results</b>                 | Unlikely to result in closed opportunity gaps and/or closing achievement gaps | May result in closed opportunity gaps and/or closing achievement gaps | Likely to result in closed opportunity gaps and/or closing achievement gaps | Extremely likely to result in closed opportunity gaps and/or closing achievement gaps |

| <b>Component</b>               | <b>Score</b> | <b>Score Rationale</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
|--------------------------------|--------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Recognition</b>             | <b>3</b>     | The proposed projects address the severe deterioration and/or inadequacy of these schools' building/site systems and components that result from historic underinvestment in District school facilities.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>Resource Prioritization</b> | <b>4</b>     | Every student is entitled to a learning space that is safe, secure and functional, and where school building systems are sound, efficient and working. These projects address critical needs of core facilities where systems have failed and/or other pressing unmet school facilities needs. As the District's school facilities needs far exceed available funding, systems in the worst condition, especially those that pose a safety hazard and/or will negatively impact school operations and other building systems if not addressed, must be addressed first. A Districtwide Facilities Condition Assessment was conducted in which every building, space and room in the District was catalogued and |

**\*\*Form to be completed for Districtwide or partial Districtwide Board Report items that expend resources.**

| Component      | Score     | Score Rationale                                                                                                                                                                                                                                                  |
|----------------|-----------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                |           | assessed. Building components/systems in the worst condition are prioritized first to ensure school facilities do not impair or impede students' ability to learn.                                                                                               |
| <b>Results</b> | <b>3</b>  | All students deserve the opportunity to learn in safe and well-maintained school facilities. Multiple aspects of the school environment support student learning and the proposed projects address the physical facilities aspect within this overall framework. |
| <b>TOTAL</b>   | <b>10</b> |                                                                                                                                                                                                                                                                  |

| Contact Person: | Telephone:   | Email:                                                             |
|-----------------|--------------|--------------------------------------------------------------------|
| Andrea Reyes    | 213.241.6518 | <a href="mailto:andrea.reyes@lausd.net">andrea.reyes@lausd.net</a> |



**LOS ANGELES UNIFIED SCHOOL DISTRICT**  
**Board of Education Report**  
**Attachment A**

***Projects to Replace Failing Building Systems that Create Safety Concerns and are Disruptive to School Operations***

**1. Ernest Lawrence Middle School – Project to Provide New Underground Plumbing**

- *Local District Northwest, Board District 3 – Schmerelson*
- *Project Background and Scope* – This project is to provide new underground sanitary sewer, domestic water, gas, fire protection, irrigation water, and storm drain lines serving the entire campus.
- *Project Budget* -- \$6,995,662
- *Project Schedule* – Construction is anticipated to begin in Q4 2024 and conclude in Q4 2026.

**2. Pacoima Middle School – Project to Provide New Underground Plumbing**

- *Local District Northeast, Board District 6 – Gonez*
- *Project Background and Scope* – This project is to provide new underground sanitary sewer, domestic water, gas, fire protection, irrigation water, and storm drain lines serving the entire campus.
- *Project Budget* -- \$11,893,702
- *Project Schedule* – Construction is anticipated to begin in Q4 2024 and conclude in Q4 2026.

**3. Gaspar de Portola Charter Middle School – Project to Provide New Underground Plumbing**

- *Local District Northwest, Board District 4 – Melvoin*
- *Project Background and Scope* – This project is to provide new underground sanitary sewer, domestic water, gas, fire protection, irrigation water, and storm drain lines serving the entire campus.
- *Project Budget* -- \$5,132,299
- *Project Schedule* – Construction is anticipated to begin in Q4 2024 and conclude in Q4 2026.



## LOS ANGELES UNIFIED SCHOOL DISTRICT

**SCHOOL CONSTRUCTION BOND CITIZENS' OVERSIGHT COMMITTEE****Margaret Fuentes, Chair**

LAUSD Student Parent

**D. Michael Hamner, Vice-Chair**

American Institute of Architects

**Jennifer McDowell, Secretary**

L.A. City Mayor's Office

**Susan Linschoten, Executive Committee**

L.A. Co. Auditor-Controller's Office

**Scott Pansky, Executive Committee**

L.A. Area Chamber of Commerce

**Neelura Bell**

CA Charter School Association

**Jeffrey Fischbach**

CA Tax Reform Assn.

**Chris Hannan**

L.A. Co. Federation of Labor AFL-CIO

**Hyepin Im**

L.A. City Controller's Office

**Brian Mello**

Assoc. General Contractors of CA

**Dr. Clarence Montecarlo**

Tenth District PTSA

**William O. Ross, IV**31<sup>st</sup> District PTSA**Samantha Rowles**

LAUSD Student Parent

**Araceli Sandoval-Gonzalez**

Early Education Coalition

**Dolores Sobalvarro**

AARP

**Celia Ayala (Alternate)**

Early Education Coalition

**Chad Boggio (Alternate)**

L.A. Co. Federation of Labor AFL-CIO

**Peggy Robertson (Alternate)**

Assoc. General Contractors of CA

**Connie Yee (Alternate)**

L.A. Co. Auditor-Controller's Office

**Joseph P. Buchman – Legal Counsel**

Burke, Williams &amp; Sorensen, LLP

**Lori Raineri and Keith Weaver – Oversight Consultants**

Government Financial Strategies

**Timothy Popejoy**

Bond Oversight Administrator

**Perla Zitle**

Bond Oversight Coordinator

**RESOLUTION 2022-38****BOARD REPORT NO. 025-22/23**

**RECOMMENDING BOARD APROVAL TO DEFINE AND APPROVE  
THREE PROJECTS TO PROVIDE CRITICAL REPLACEMENTS AND  
UPGRADES OF SCHOOL BUILDING/SITE SYSTEMS AND COMPONENTS  
AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC  
EXECUTION PLAN TO INCORPORATE THEREIN**

WHEREAS, District Staff proposes that the Board of Education define and approve three projects that address critical replacement and upgrade needs at schools with a budget of \$24,021,663 (the "Projects") as described in Board Report 025-22/23 attached hereto, and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein, and authorize the Chief Procurement Officer and/or the Chief Facilities Executive, and/or their designee(s), to execute all instruments necessary to implement the Projects; and

WHEREAS, projects developed under the School Upgrade Program category of need, Critical Replacements and Upgrades of School Building/Site Systems and Components, will replace failing building systems that create safety concerns and are disruptive to school operations; and

WHEREAS, the Projects are consistent with the Los Angeles Unified School District (Los Angeles Unified or District)'s long-term goal to address unmet school facilities needs and significantly improve the conditions of aging and deteriorating school facilities as described in Los Angeles Unified local bond measures; and

WHEREAS, District Staff has determined that the Projects are necessary to improve student health, safety and educational quality; and

**RESOLUTION 2022-38****RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THREE PROJECTS TO PROVIDE CRITICAL REPLACEMENTS AND UPGRADES OF SCHOOL BUILDING/SITE SYSTEMS AND COMPONENTS AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

WHEREAS, the Board of Education's approval of the Projects will authorize District Staff to proceed with the expenditure of bond funds to undertake the Projects in accordance with the provisions set forth in Los Angeles Unified local bond measures K, R, Y, Q, and RR; and

WHEREAS, District Staff has concluded that this proposed Facilities SEP amendment will facilitate Los Angeles Unified's ability to successfully complete the Facilities SEP.

NOW, THEREFORE, BE IT RESOLVED THAT:

1. The School Construction Citizens' Bond Oversight Committee recommends that the Board of Education define and approve three projects that address critical replacement and upgrade needs at schools, with a combined budget of \$24,021,663, and amend the Facilities SEP to incorporate therein, as described in Board Report 025-22/23, a copy of which is attached hereto in the form it was presented to the BOC and is incorporated herein by reference.
2. This resolution shall be transmitted to the Los Angeles Unified School District Board of Education and posted on the Oversight Committee's website.
3. The District is directed to track the above recommendation and to report on the adoption, rejection, or pending status of the recommendations as provided in section 6.2 of the Charter and Memorandum of Understanding between the Oversight Committee and the District.

ADOPTED on September 1, 2022, by the following vote:

AYES: 11

ABSTENTIONS: 0

NAYS: 0

ABSENCES: 4

/Margaret Fuentes/

Margaret Fuentes  
Chair

/Jennifer McDowell/

Jennifer McDowell  
Secretary